



Justification for an Exception to Fair Opportunity

FAR 16.505(b)(2)(i)(C) – Logical Follow-on

1. Identification of the agency and the contracting activity.

The requiring organization is the United States Department of Justice (DOJ), Justice Management Division (JMD), Service Delivery Staff (SDS), Infrastructure Services (IS). The contracting activity is the JMD Procurement Services Staff (PSS).

2. Nature and/or description of the action being approved.

PSS proposes to issue a sole source task order against National Aeronautics and Space Administration (NASA)'s Solutions for Enterprise-Wide Procurement (SEWP) V, Government-Wide Acquisition Contract (GWAC) NNG15SD19B for Storage and Backup services. The proposed contractor is Alvarez and Associates, LLC. located at 8251 Greensboro Drive, Suite 230, Tysons Corner, VA 22102. Alvarez is currently performing the services under task order No. 15JPSS19F00000871 against NASA SEWP GWAC NNG15SD19B.



3. Description of the supplies or services required to meet the agency's needs, including the estimated value.

The Storage and Backup Team has a requirement to provide secure, durable, and highly scalable storage and backups with a storage-as-a-service (StaaS) solution that offers prompt provisioning of additional capacity whenever needed. This requirement is to provide enterprise-level storage, backup, and restore including archive with reliable redundant architecture and performance rebalancing. Finally, the requirement is to provide secure and scalable storages and data protection including Data-At-Rest Encryption (DARE).



[REDACTED]

The estimated value of this task order is [REDACTED]

4. Authority and supporting rationale including, if applicable, demonstration of the proposed contractor's unique qualifications to provide the required supply or service.

The statutory authority permitting an exception to fair opportunity is Section 41 U.S.C. 4106(c)(3) as implemented by the Federal Acquisition Regulation (FAR) 16.505(b)(2)(i)(C), entitled "The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order".

The current task order 15JPSS19F00000871 was awarded to Alvarez on October 1, 2019. A competitive solicitation was issued utilizing NASA SEWP RFQ No. 126242. The solicitation was issued for competition amongst 132 contract holders on NASA SEWP. [REDACTED]

[REDACTED]

It would not be cost- and/or time effective to the existing environment to change vendors in the middle of preparing for the new platform in order to provide services for only six months.

[REDACTED]

[REDACTED]

place ready to perform all the required services without disruption or delay. No other firm could mobilize and interface with SDS's storage system infrastructure.

5. A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer has determined that the pricing under the resulting bridge contract will be the same pricing in effect under the current Period of Performance for order NNG15SD19B /15JPSS19F00000871. The pricing for the current Period of Performance was determined fair and reasonable upon award utilizing techniques in accordance with FAR 15.404-1(b)(2).

6. Description of the market research conducted among schedule holders and the results, or a statement of the reason market research was not conducted.



7. Any other facts supporting the justification.

None

8. Statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services is made.

None

9. Certifications, Concurrences and Approval.

Technical/Requirements Personnel Certification:

I certify that the information contained in this document for which I am responsible is accurate and complete to the best of my knowledge and belief.

[Redacted Signature] Date _____

Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

[Redacted Signature] Date _____